

ELIZABETH II



1985 CHAPTER xxx

An Act to empower the British Railways Board to construct works and to purchase or use land in the city of Norwich, in the county of Norfolk; to confer further powers on the Board; and for other purposes.

[22nd July 1985]

WHEREAS—

(1) By the Transport Act 1962 the British Railways Board 1962 c. 46. (hereinafter referred to as “the Board”) were established:

(2) It is the duty of the Board under the said Act of 1962 (inter alia) to provide railway services in Great Britain and, in connection with the provision of railway services, to provide such other services and facilities as appear to the Board to be expedient, and to have due regard, as respects all those railway and other services and facilities, to efficiency, economy and safety of operation:

(3) It is expedient that the Board should be empowered to construct the works in the city of Norwich authorised by this Act and to purchase or use the land in the said city referred to in this Act:

(4) It is expedient that the other powers in this Act contained should be conferred on the Board as therein provided, and that the other provisions in this Act contained should be enacted:

(5) A plan and sections showing the lines or situations and levels of the works to be constructed under the powers of this Act, and a plan of the land authorised to be purchased or used by this Act, and a book of reference to such plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said land were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the proper officer of the Norfolk County Council, which plan, sections and book of reference are respectively referred to in this Act as the deposited plan, the deposited sections and the deposited book of reference:

(6) The purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title. 1. This Act may be cited as the British Railways (Trowse Bridge) Act 1985.

Interpretation. 2.—(1) In this Act, unless the context otherwise requires, words and expressions to which meanings are assigned by the enactments incorporated herewith have in relation to the related subject-matter the same respective meanings; and—

1845 c. 20. “the Act of 1845” means the Railways Clauses Consolidation Act 1845;

1863 c. 92. “the Act of 1863” means the Railways Clauses Act 1863;

1965 c. 56. “the Act of 1965” means the Compulsory Purchase Act 1965;

1981 c. xxxv. “the (No. 2) Act of 1981” means the British Railways (No. 2) Act 1981;

1984 c. xx. “the (No. 2) Act of 1984” means the British Railways (No. 2) Act 1984;

“the Board” means the British Railways Board;

“the commissioners” means the Great Yarmouth Port and Haven Commissioners;

“the existing bridge” means the bridge of the Board known as the Trowse Swing Bridge which carries the railway between Norwich station and Trowse Lower Junction over the river and over the private road known as Hardy Road;

“the level of high water” means the level of mean high-water springs;

“the limit of deviation” means the limit of deviation shown on the deposited plan;

“the new bridge” means the bridge authorised as part of Work No. 1;

“the river” means the river Wensum;

“the statutory maximum” means the prescribed sum as defined in section 32 (9) of the Magistrates’ Courts Act 1980;

1980 c. 43.

“tidal work” means so much of the works as is on, under or over tidal waters or tidal lands below the level of high water; and

“the works” means the works authorised by this Act.

(2) Except in relation to subsections (2) and (3) of section 5 (Power to make works) of this Act, all directions, distances and lengths stated in any description of works, powers or lands shall be construed as if the words “or thereabouts” were inserted after each such direction, distance and length and distances between points on a railway shall be taken to be measured along the railway.

(3) Any reference in this Act to Work No. 1 or Work No. 2 is a reference to the work of that number authorised by subsection (1) of the said section 5 of this Act.

3.—(1) The following enactments, so far as the same are applicable for the purposes of and are not inconsistent with this Act, are incorporated with this Act, and this Act shall be the special Act for the purposes of the said enactments:—

Incorporation
of general
enactments.

(a) the Act of 1845, except sections 1, 7, 8, 9, 11, 12, 15, 17, 19, 20, 22 and 23 thereof; and

(b) in the Act of 1863, Part I (relating to the construction of a railway), except sections 13 to 19 thereof.

(2) (a) For the purposes of the enactments incorporated by subsection (1) above the expression “the company” where used in those enactments means the Board.

(b) For the purposes of sections 16 and 30 to 44 of the Act of 1845, as incorporated by subsection (1) above, Work No. 2 shall be deemed to be a railway authorised by the special Act.

PART I
—cont.

(c) Sections 18 and 21 of the Act of 1845, as so incorporated, shall not extend to regulate the relations between the Board and any other person in respect of any matter or thing concerning which those relations are regulated in any respect by the provisions of—

- 1950 c. 39. (i) Part II of the Public Utilities Street Works Act 1950; or
(ii) section 27 (For protection of electricity, gas and water undertakers) of the (No. 2) Act of 1984, as incorporated with this Act.

Application of
Part I of
Compulsory
Purchase Act
1965.

4.—(1) Part I of the Act of 1965 (except sections 4 and 27 thereof and paragraph 3 (3) of Schedule 3 thereto), so far as it is applicable for the purposes of and is not inconsistent with this Act, shall apply to the compulsory purchase of land under this Act as it applies to a compulsory purchase to which the Acquisition of Land Act 1981 applies and as if this Act were a compulsory purchase order under the said Act of 1981.

1981 c. 67.

(2) In section 11 (1) of the Act of 1965 (which empowers the acquiring authority to enter on and take possession of land the subject of a notice to treat after giving not less than 14 days' notice), as so applied, for the words "fourteen days" there shall be substituted the words "three months".

1845 c. 18.

(3) The Lands Clauses Consolidation Act 1845 shall not apply to the purchase of land under this Act.

PART II

WORKS, ETC.

Power to
make works.

5.—(1) Subject to the provisions of this Act, the Board may, in the lines or situations shown on the deposited plan and within the limit of deviation and according to the levels shown on the deposited sections, make and maintain the following works in the city of Norwich, in the county of Norfolk, with all necessary works and conveniences connected therewith:—

(Deviation
railway).

Work No. 1 A railway (846 metres in length), being a deviation of the railway between Norwich station and Trowse Lower Junction, including a bridge over the river and over the private road known as Hardy Road, with an opening span over the river, commencing by a junction with the said railway at a point 82 metres south-east of the bridge carrying Carrow Road thereover and terminating by a junction with the said railway at a point 151 metres north-east of the bridge carrying Bracondale thereover;

(Cable bridge).

Work No. 2 A cable bridge over the private road known as Hardy Road.

(2) In the construction of the opening span of the new bridge the Board shall leave thereunder a clear and uninterrupted navigable waterway having a depth of not less than that available on 27th November 1984, a width of not less than 12.80 metres and a headway (when the span is closed) of not less than 3 metres above the level of high water.

(3) In the construction of the new bridge and Work No. 2 the Board shall leave thereunder a headway of not less than 2.80 metres above the level of Hardy Road.

(4) No part of the new bridge, and no wires or any other thing provided by the Board in connection therewith, shall be placed across the river so as to reduce the headway available for vessels when the opening span of the new bridge is open.

6. Subject to the provisions of subsections (2) to (4) of section 5 (Power to make works) of this Act, in the execution of the works the Board may deviate from the lines or situations thereof shown on the deposited plan to the extent of the limit of deviation and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding 3 metres upwards or downwards. Power to deviate.

7.—(1) Subject to subsection (2) below the Board may in connection with the construction, maintenance, alteration, repair, reconstruction or use of the new bridge or at or near the new bridge— Subsidiary works in river or elsewhere.

(a) execute and place in the river or elsewhere, either permanently or temporarily, all such further works and conveniences as they may find necessary or expedient; and

(b) dredge any part of the river—

(i) to such extent as may be necessary; or

(ii) for the purpose of preserving uninterrupted navigation along the river beneath, and in the vicinity of, the new bridge;

and may use, sell or otherwise dispose of or remove or deposit any materials taken up or collected by means of dredging as they think fit.

(2) In the exercise of the powers conferred on them by subsection (1) above the Board shall ensure, so far as is reasonably practicable, that—

(a) any works executed or maintained by them shall not unnecessarily narrow or obstruct the navigable waterway of the river or otherwise unnecessarily interfere with or impede navigation or unnecessarily obstruct the flow of water or the passage of fish;

PART II
—cont.

- (b) no materials taken up or collected in the course of any dredging operations shall be deposited below the level of high water, except in such places and in accordance with such conditions and restrictions as may be approved or prescribed by the Secretary of State and the commissioners;
- (c) no fixed temporary works shall be placed in the river so as to reduce the headway available to vessels or to reduce the navigable waterway of the river to a width of less than 12.80 metres.

(3) On the completion of the new bridge the Board shall remove all temporary works placed by them in the river and shall at their own expense keep repaired any other works so placed by them.

Removal of
existing bridge.

8.—(1) Subject to subsection (2) below, as soon as reasonably practicable after the new bridge is opened for rail traffic, the Board shall, with all reasonable dispatch and upon such terms as may be agreed with the commissioners, take down and remove to the satisfaction of the commissioners the opening span of the existing bridge and shall ensure, so far as is reasonably practicable, that such taking down and removal shall not unnecessarily obstruct the navigable waterway of the river or otherwise interfere with or impede navigation.

(2) No fixed temporary works shall be placed in the river in connection with the taking down and removal of the existing bridge so as to reduce the headway available to vessels or to reduce the navigable waterway of the river to a width of less than 12.80 metres.

(3) The provisions of section 11 (Lights on tidal works during construction) of this Act shall apply to the taking down and removal of the opening span of the existing bridge as if the opening span were a tidal work, and as if such taking down and removal were referred to in the said section 11, in addition to the construction of a tidal work.

Tidal works
not to be
executed
without
approval of
Secretary of
State.

9.—(1) A tidal work shall not be constructed except in accordance with plans and sections approved by the Secretary of State and subject to any conditions and restrictions imposed by him before the work is begun.

(2) If a tidal work is constructed in contravention of this section or of any condition or restriction imposed under this section—

- (a) the Secretary of State may by notice in writing require the Board at their own expense to remove the tidal work, or any part thereof, and restore the site thereof

to its former condition; and, if, on the expiration of 30 days from the date when the notice is served upon the Board, they have failed to comply with the requirements of the notice, the Secretary of State may execute the works specified in the notice; or

- (b) if it appears to the Secretary of State urgently necessary so to do, he may himself remove the tidal work or part of it and restore the site to its former condition;

and any expenditure incurred by the Secretary of State in so doing shall be recoverable from the Board.

10. The Secretary of State or the commissioners may at any time if he deems or they deem it expedient order a survey and examination of a tidal work, or of the site upon which it is proposed to construct the work, and any expenditure incurred by the Secretary of State or the commissioners in any such survey and examination shall be recoverable from the Board.

Survey of tidal works.

11.—(1) The Board shall at or near a tidal work during the whole time of the construction thereof exhibit every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation as the Secretary of State and the commissioners shall from time to time direct.

Lights on tidal works during construction.

(2) If the Board fail to comply in any respect with a direction given under this section, they shall be liable on summary conviction to a fine not exceeding the statutory maximum and on conviction on indictment to a fine.

12.—(1) After the completion of a tidal work the Board shall at the outer extremity thereof exhibit every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation as the commissioners shall from time to time direct.

Permanent lights on tidal works.

(2) If the Board fail to comply in any respect with a direction given under this section, they shall be liable on summary conviction to a fine not exceeding the statutory maximum and on conviction on indictment to a fine.

13.—(1) Where a tidal work is abandoned, or suffered to fall into decay, the Secretary of State or the commissioners may by notice in writing require the Board at their own expense either to repair and restore the work, or any part thereof, or to remove the work and restore the site thereof to its former condition, to such an extent and within such limits as the Secretary of State or the commissioners think proper.

Abatement of works abandoned or decayed.

PART II
—cont.

(2) If the new bridge is abandoned or suffered to fall into decay and any part thereof as is on or over land above the level of high water is in such condition as to interfere, or to cause reasonable apprehension that it may interfere, with the right of navigation, the Secretary of State or the commissioners may include that part of the new bridge, or any portion thereof, in any notice under this section.

(3) If, on the expiration of 30 days from the date on which a notice under this section is served upon the Board, they have failed to comply with the requirements of the notice, the Secretary of State or the commissioners may execute the works specified in the notice, and any expenditure incurred by him or them in so doing shall be recoverable from the Board.

Provisions
applicable to
sections 7, 11
and 13.

14. If there shall be any inconsistency between a direction or requirement of the Secretary of State and a direction or requirement of the commissioners under section 7 (Subsidiary works in river or elsewhere), section 11 (Lights on tidal works during construction) or section 13 (Abatement of works abandoned or decayed) of this Act, the direction or requirement of the Secretary of State shall prevail.

Provision
against danger
to navigation.

15.—(1) In case of injury to or destruction or decay of a tidal work, or any part thereof, the Board shall forthwith notify the commissioners and shall lay down such buoys, exhibit such lights and take such other steps for preventing danger to navigation as the commissioners shall from time to time direct.

(2) If the Board fail to notify the commissioners as required by this section or to comply in any respect with a direction given under this section, they shall be liable on summary conviction to a fine not exceeding the statutory maximum and on conviction on indictment to a fine.

Defence of
due diligence.

16.—(1) (a) In proceedings for an offence under any provision of this Act mentioned in paragraph (b) below it shall be a defence for the Board to prove that they took all reasonable precautions and exercised all due diligence to avoid the commission of such an offence.

(b) The provisions referred to in paragraph (a) above are—
section 11 (Lights on tidal works during construction);
section 12 (Permanent lights on tidal works); and
section 15 (Provision against danger to navigation).

(2) If in any case the defence provided by subsection (1) (a) above involves the allegation that the commission of the offence was due to the act or default of another person, the Board shall not, without leave of the court, be entitled to rely on that defence unless, within a period of seven clear days before the

hearing, they have served on the prosecutor a notice in writing giving such information identifying, or assisting in the identification of, that other person as was then in their possession.

PART II
—cont.

17. The following provisions of the (No. 2) Act of 1981 are incorporated with this Act:—

Incorporation
of works
provisions.

Section 15 (Underpinning of buildings near works); and
Section 16 (Use of sewers, etc., for removing water).

PART III

LANDS

18. The Board may purchase compulsorily and use such of the land delineated on the deposited plan and described in the deposited book of reference as they may require for the purposes of the works or for any purpose connected with or ancillary to their undertaking.

Purchase of
land.

19.—(1) In this section references to the purchase by the Board of new rights are references to the purchase of rights to be created in favour of the Board.

Purchase of
rights over
land.

(2) The Board may, for the purpose of constructing, maintaining, altering, renewing and using the works, purchase compulsorily such new rights as they may require over any of the land delineated on the deposited plan and described in the deposited book of reference instead of purchasing that land under section 18 (Purchase of land) of this Act.

(3) The Act of 1965, as applied by this Act, shall have effect with the modifications necessary to make it apply to the compulsory purchase of new rights under subsection (2) above as it applies to the compulsory purchase of land so that, in appropriate contexts, references in the Act of 1965 to land are read as referring, or as including references, to the new rights or to land over which the new rights are, or are to be, exercisable, according to the requirements of the particular context.

(4) Without prejudice to the generality of subsection (3) above, in relation to the purchase of new rights under subsection (2) above—

(a) Part I of the Act of 1965 shall have effect with the modifications specified in Schedule 3 to the (No. 2) Act of 1981 and as if for the references in that schedule to that Act there were substituted references to this Act; and

PART III
—cont.

(b) the enactments relating to compensation for the compulsory purchase of land shall apply with the necessary modifications as they apply to such compensation.

Time for
purchase of
land and rights
over land.

20. The powers of the Board for the compulsory purchase of land and rights over land under this Act shall cease on 31st December 1990.

Temporary
possession or
use of land.

21.—(1) In this section—

“Colman’s access” means the private road and land numbered on the deposited plan 12 in the city of Norwich;

“Hardy Road” means the private road of that name numbered on the deposited plan 5 in the city of Norwich;

“the working site” means the land within the area marked “Limit of temporary working site” on the deposited plan required by the Board for use as a working site;

“the relevant lands” means Colman’s access, Hardy Road or the working site, as the case may be.

(2) The Board may, in connection with the construction of the works, after giving to the owners and occupiers of the relevant lands not less than 28 days’ previous notice in writing—

(a) use Colman’s access and Hardy Road for the purpose of obtaining access to the site of the works;

(b) enter upon and take possession temporarily of the working site;

and, in connection therewith, the Board may remove any structures or vegetation on the working site and construct thereon such temporary works or structures as may be required by them.

(3) On the exercise of the powers conferred by subsection (2) above the following provisions shall have effect:—

(a) The Board shall not be empowered to purchase compulsorily or be required to purchase any part of the relevant lands:

(b) The Board shall not, without the agreement of the owners and occupiers of the relevant lands, remain in possession of any part thereof after a period of one year from the completion of the works:

(c) Before giving up possession of the relevant lands the Board shall remove all temporary works and structures from the working site and restore the

relevant lands to the reasonable satisfaction of the owners and occupiers thereof:

PART III
—cont.

- (d) The Board shall compensate the owners and occupiers of the relevant lands for any loss or damage which may result to them by reason of the exercise of the powers of subsection (2) above:
- (e) Nothing in this section shall relieve the Board from liability to compensate under section 6 or 43 of the Act of 1845 or section 10 (2) of the Act of 1965, as incorporated or applied by this Act, or under any other enactment, in respect of loss or damage arising from the execution of any works, other than loss or damage for which compensation is payable under paragraph (d) above:
- (f) Any dispute as to a person's entitlement to compensation under paragraph (d) above or as to the amount thereof shall be determined by the Lands Tribunal.

22. The following provisions of the undermentioned Acts are incorporated with this Act:—

Incorporation
of lands
provisions.

The (No. 2) Act of 1981—

Section 21 (Extinction or suspension of private rights of way); and

Section 24 (Correction of errors in deposited plans and book of reference);

The (No. 2) Act of 1984—

Section 21 (Purchase of part of certain properties); and

Section 22 (Disregard of recent improvements and interests).

PART IV

PROTECTIVE PROVISIONS

23. The following provisions of the undermentioned Acts are incorporated with this Act:—

Incorporation
of protective
provisions.

The (No. 2) Act of 1981—

Section 33 (Crown rights);

The (No. 2) Act of 1984—

Section 27 (For protection of electricity, gas and water undertakers).

24. Nothing in this Act shall prejudice or derogate from the jurisdiction or authority or any of the rights or privileges of the Corporation of Trinity House of Deptford Strond. Saving for Trinity House.

PART IV
—cont.
For protection
of Great
Yarmouth
Port and
Haven Com-
missioners.
1976 c. 70.

25. For the protection of the commissioners the following provisions shall, unless otherwise agreed in writing between the Board and the commissioners, apply and have effect:—

(1) In this section—

“banks” has the meaning given by section 116 (1) of the Land Drainage Act 1976;

“construction” includes reconstruction and the maintenance and repair of the specified works;

“the harbour master” means the harbour master of the commissioners;

“plans” includes sections, drawings and particulars;

“specified operations” and “specified works” mean respectively—

(a) any operations authorised by this Act (other than the construction of any specified works), including the removal of the existing bridge; and

(b) any of the works;

which, as the case may be, are carried out or situated upon, across, under or over or may in any way affect the river or the banks thereof:

(2) The Board shall, before commencing the carrying out of any specified operations or the construction of any specified works, furnish to the commissioners proper and sufficient plans thereof for the reasonable approval of the harbour master and shall not commence the specified operations or the specified works until plans thereof have been approved in writing by the harbour master or settled by arbitration:

Provided that, if within 56 days after such plans have been furnished to the commissioners the harbour master shall not have intimated his disapproval thereof and the grounds of his disapproval, he shall be deemed to have approved the same:

(3) (a) Upon signifying his approval or disapproval of the plans the harbour master may make requirements as to the provision and maintenance by the Board of any of the following:—

(i) protective works, whether temporary or permanent, which in the opinion of the harbour master should be carried out before the commencement of the specified operations or the specified works to ensure the stability of the river and banks thereof;

- (ii) fenders, mooring posts, bollards, booms, dolphins and other subsidiary works;
- (b) It shall be the duty of the Board to comply with any requirement made under this paragraph with all reasonable dispatch;
- (c) If there shall be any inconsistency between any plans approved by the commissioners under this section and the plans and sections approved by the Secretary of State under section 9 (Tidal works not to be executed without approval of Secretary of State) of this Act, the specified operations shall be carried out or the specified works shall be constructed in accordance with the plans and sections approved by the Secretary of State:
- (4) (a) The new bridge shall be provided with adequate machinery, works and conveniences for opening and closing the opening span of the bridge;
- (b) Unless prevented by unavoidable injury or accident to the new bridge, the Board shall open the new bridge when completed for the passage of vessels on request at any time of the day or night except when engines or carriages shall be about to pass over the new bridge and on any such occasions the new bridge shall not be closed so as to delay or detain any vessel for longer than shall be necessary to allow the passage of such engines and carriages:
- (5) The Board shall give to the harbour master 28 days' notice of their intention to commence the carrying out of any specified operations or the construction of any specified works:
Provided that in the case of maintenance or repair of any specified works carried out in an emergency they shall give such notice as may be reasonably practicable:
- (6) Where any specified operations or any specified works will involve the closure of the river against the passage of vessels, the Board shall give to the harbour master 28 days' notice of such closure (except in the case of specified operations or the maintenance or repair of any specified works carried out in an emergency when they shall give such notice as may be reasonably practicable) and no such closure shall extend for more than 72 hours:
- (7) (a) If, during the carrying out of any specified operations or the construction of any specified works or within five years after the completion of such

PART IV
—cont.

carrying out or construction and in consequence of the specified operations or the specified works any accumulation of silt or other material shall be created in the river which shall cause impediment to navigation, the Board, if so requested by the commissioners within the period of five years after such completion, shall remove such accumulation of silt or other material and, if they refuse or fail so to do, the commissioners may themselves cause the work to be done and may recover from the Board the reasonable cost thereof;

- (b) The Board shall not deposit any materials in the river or on the banks thereof so as to increase the work of dredging carried out by the commissioners and shall take such steps as the harbour master may reasonably require to avoid or make good any breach of their obligations under this paragraph:
- (8) The Board shall provide and maintain at their cost such temporary lighting of the river and signal lights in the vicinity of the specified operations (other than the taking down and removal of the existing bridge), as the harbour master may reasonably require during the carrying out of the specified operations:
- (9) The specified operations and specified works shall, when commenced, be carried out with all reasonable dispatch in accordance with the approved plans and under the supervision (if given) and to the reasonable satisfaction of the harbour master, and in such manner as to cause as little damage as may be to the river or the banks thereof or land or property of the commissioners and as little interference as may be with the passage of vessels using the river:
- (10) If any damage to the river or the banks thereof or land or property of the commissioners or any stoppage of the river or any interference with the passage of vessels using the river shall be caused by the carrying out of the specified operations or the specified works or by the passage of vehicles, plant or machinery employed in connection therewith, the Board shall, notwithstanding any approval under paragraph (2) above, make good such damage and on demand pay to the commissioners all reasonable expenses to which they may be put and compensation for any loss which they may sustain by reason of any such damage, stoppage or interference:

Provided that nothing in this paragraph shall impose any liability on the Board with respect to any

damage, expenses or loss which is attributable to the act, neglect or default of the commissioners or their servants, contractors or agents:

PART IV
—cont.

(11) The Board shall at all times afford reasonable facilities to the harbour master for access to the site of the specified operations and the specified works during their carrying out or construction and shall supply him with all such information as he may reasonably require with regard to the specified operations or the specified works or the method of carrying out or construction thereof:

(12) The Board shall repay to the commissioners all costs, charges and expenses reasonably incurred by the commissioners—

(a) in respect of the employment of any inspectors, watchmen and other persons whom it shall be reasonably necessary to appoint for inspecting, watching and lighting the river and for preventing, as far as may be reasonably practicable, interference, obstruction, danger or accident arising from the carrying out of the specified operations or the construction or failure of the specified works;

(b) in respect of the supervision by the harbour master of the specified operations and the specified works;

(c) in bringing the specified operations and the specified works to the notice of users of the river:

(13) The Board shall be responsible for and make good to the commissioners all costs, charges, damages and expenses not otherwise provided for in this section which may be occasioned to or reasonably incurred by the commissioners—

(a) by reason of the specified operations and the specified works or the failure of the specified works; or

(b) by reason of any act or omission of the Board or of any persons in their employ or of their contractors or others whilst engaged upon the carrying out of the specified operations or the construction of the specified works;

and the Board shall effectively indemnify and hold harmless the commissioners from and against all claims and demands arising out of or in connection with the carrying out of the specified operations or the construction of the specified works or any such failure, act or omission as aforesaid and the fact that any act or thing may have been done in accordance with plans

PART IV
—*cont.*

approved by the harbour master, or in accordance with any requirement of the harbour master or under his supervision, shall not (if it was done without negligence on the part of the commissioners) excuse the Board from any liability under the provisions of this section:

Provided that the commissioners shall give to the Board reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Board:

- (14) Any difference arising between the Board and the commissioners under this section shall be referred to and settled by a single arbitrator to be agreed between the parties or, failing agreement, to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers.

For further
protection of
electricity
undertakers.

26. Notwithstanding anything in this Act the Central Electricity Generating Board and the Eastern Electricity Board shall continue to have the same rights of access over and along the private road known as Hardy Road to and from the Norwich Thorpe Gas Turbine Station and sub-station as they enjoyed immediately before the passing of this Act and the powers of this Act shall be exercised so as not to prevent, obstruct or render unreasonably inconvenient the use of Hardy Road by vehicles of the said boards, or either of them, unless arrangements have been made with the said boards to provide an alternative means of access to the said turbine station and sub-station.

PART V

GENERAL

Planning
permission.

S.I. 1977/289.

27.—(1) In this section “Class XII development” means development authorised by article 3 of, and Class XII in Schedule 1 to, the Town and Country Planning General Development Order 1977 (which permit development authorised by private Act designating specifically both the nature of the development thereby authorised and the land on which it may be carried out).

(2) Subject to subsection (3) below, in its application to development authorised by this Act, the planning permission granted for Class XII development shall have effect as if the authority to develop given by this Act were limited to development begun within 10 years after the passing of this Act.

(3) Subsection (2) above shall not apply to the carrying out of any development consisting of the alteration, maintenance or repair of works or the substitution of new works therefor.

PART V
—cont.

28. All costs, charges and expenses of and incidental to the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Board and may in whole or in part be defrayed out of revenue. Costs of Act.

PRINTED IN ENGLAND BY OYEZ PRESS LIMITED
FOR W. J. SHARP

Controller and Chief Executive of Her Majesty's Stationery Office and
Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

£2.80 net

ISBN 0 10 513085 0



British Railways (Trowse Bridge) Act 1985

CHAPTER xxx

ARRANGEMENT OF SECTIONS

PART I

PRELIMINARY

Section

1. Short title.
2. Interpretation.
3. Incorporation of general enactments.
4. Application of Part I of Compulsory Purchase Act 1965.

PART II

WORKS, ETC.

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6. Power to deviate.
7. Subsidiary works in river or elsewhere.
8. Removal of existing bridge.
9. Tidal works not to be executed without approval of Secretary of State.

Section

10. Survey of tidal works.
11. Lights on tidal works during construction.
12. Permanent lights on tidal works.
13. Abatement of works abandoned or decayed.
14. Provisions applicable to sections 7, 11 and 13.
15. Provision against danger to navigation.
16. Defence of due diligence.
17. Incorporation of works provisions.

PART III

LANDS

18. Purchase of land.
19. Purchase of rights over land.
20. Time for purchase of land and rights over land.
21. Temporary possession or use of land.
22. Incorporation of lands provisions.

PART IV

PROTECTIVE PROVISIONS

23. Incorporation of protective provisions.
24. Saving for Trinity House.
25. For protection of Great Yarmouth Port and Haven Commissioners.
26. For further protection of electricity undertakers.

PART V

GENERAL

27. Planning permission.
28. Costs of Act.